

February 05, 2021



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 20799
(FIRST REVISION)

EXPIRATION DATE: 2025-01-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Multi-Chem Group, LLC
Houston, TX
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the manufacture, mark, sale, and use of DOT specification 4BW240 welded steel cylinders for the transportation in commerce of Acrolein, stabilized (UN1092) by motor vehicle and cargo vessel. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. In accordance with 49 CFR 107.107(a), party status may not be granted to a manufacturing permit. These packagings may be used in accordance with 49 CFR 173.22a.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.

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4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.40(c), 173.226(a), and 173.301(f) in that welded DOT specification cylinders with pressure relief devices are not authorized for Division 6.1, Hazard Zone A materials, except as specified herein.
5. BASIS: This special permit is based on the application of Multi-Chem Group, LLC dated January 27, 2021 and submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Acrolein, stabilized	6.1	UN1092	I, Hazard Zone A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Packagings prescribed are DOT Specification 4BW240 welded steel cylinders having a capacity of approximately 53 gallons (370 pounds) of acrolein. Each cylinder is equipped with the pressure relief device system described in the Multi-Chem Group, LLC application dated October 30, 2018, which is on file with the Office of Hazardous Materials Safety Approvals and Permits Division (OHMSAPD).

- b. OPERATIONAL CONTROLS:

(1) Leak Test: Prior to use under the terms of this special permit, each cylinder must be pneumatically pressurized with an inert or a Division 2.2 gas (e.g., helium, nitrogen) to a pressure greater than or equal to 30 psig. All welded joints, fitting assembly including pressure relief system, and other related devices (e.g., pressure gauge) must be leak tested. Multi-Chem, Group, LLC must prepare a leak test report for each cylinder and make the test report available to OHMSAPD upon request.

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(2) Each cylinder must be shipped under a nitrogen blanket at a minimum pressure of 12 psig.

(3) Each cylinder may not contain more than 53 gallons (370 pounds) of acrolein. The maximum pressure in each cylinder during transportation may not exceed 30 psig at 65 °C (149 °F).

(4) Cylinders suspected of contamination are not authorized for shipment under the terms of this special permit.

(5) In addition to all applicable requirements of the HMR, the continued service of all cylinders is subject at all times to Multi-Chem Group, LLC's Mechanical Integrity Program and Cleaning Procedure on file with the OHMSAPD.

(6) Transportation by motor vehicle is limited to private or contract carriage.

(7) The driver of the transport vehicle must be instructed that in the event the vehicle is in an accident involving spilled fuel or fire, the vehicle must be moved to a safe location unless moving the vehicle would directly endanger the driver or others.

(8) When transported by cargo vessel, each cylinder must be properly blocked and braced within a freight container.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modification or change is made to the package and it is offered for transportation in conformance with this special permit and the HMR.

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- c. The cylinders described in this special permit are authorized only for normal transportation as an article of commerce (i.e., the movement of hazardous materials packages from consignor to consignee).
- d. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
- e. In addition to the required specification marking required in accordance with § 178.35(f), each cylinder must be plainly and durably marked "DOT SP-20799".
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

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Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)– “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: ae